

United States Courts
Southern District of Texas
FILED

August 08, 2025

Nathan Ochsner, Clerk of Court

COMPLAINT FOR VIOLATION OF CIVIL RIGHTS
(42 U.S.C. §§ 1983, 1985(3), 1986)

JURY TRIAL DEMANDED

NOTICE OF SUI JURIS STATUS AND RESERVATION OF RIGHTS

TO THE HONORABLE UNITED STATES DISTRICT COURT:

Plaintiff, DONALD L. THOMPSON, JR., a private citizen residing in Matagorda County, Texas, appears pro se and sui juris, and respectfully alleges the following for his Complaint against the Defendants named herein. Plaintiff brings this action pursuant to 42 U.S.C. §§ 1983, 1985(3), and 1986 to redress the deprivation of his civil rights under the United States Constitution.

Plaintiff expressly states that no rights are waived and all rights are reserved under the U.S. Constitution and applicable law. This Complaint is timely under the discovery rule, as Plaintiff did not become aware of the constitutional basis of the harms until April 20, 2025, due to the deliberate concealment of material facts by County officials.

Plaintiff submitted Notices of Claim to Matagorda County on April 25, May 20, and May 23, 2025, which were ignored. Accordingly, all pre-suit procedural obligations under Texas law are satisfied or excused by actual notice and the County's failure to respond.

Introduction

1. Plaintiff, Donald L. Thompson Jr., is a natural person and a citizen of the United States, residing in Markham, Texas. He brings this action pro se and sui juris.
2. Plaintiff asserts claims arising under the United States Constitution and federal statutes, including 42 U.S.C. §§ 1983, 1985(3), and 1986, for violations of his Fourth, Fifth, Sixth, and Fourteenth Amendment rights.
3. This action arises out of a May 14, 2023, traffic stop, arrest, and subsequent proceedings in Matagorda County, Texas, in which Plaintiff was unlawfully arrested, detained, deprived of property, denied due process, and subjected to malicious prosecution through the coordinated actions of County officials and employees.

I. JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction pursuant to 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3) (civil rights jurisdiction), as this action arises under the Constitution and laws of the United States, including 42 U.S.C. §§ 1983, 1985(3), and 1986.
5. Venue is proper in the Southern District of Texas, Galveston Division, under 28 U.S.C. § 1391(b), because all of the events giving rise to these claims occurred in Matagorda County, Texas, and all Defendants reside or are employed therein.

II. PARTIES

6. Plaintiff DONALD L. THOMPSON, JR. is a natural person and resident of Matagorda County, Texas. He appears sui juris and without counsel.
7. Defendant MATAGORDA COUNTY is a political subdivision of the State of Texas and may be served through the Matagorda County Judge at the County Courthouse.
8. Defendant JENNIFER CHAU was, at all relevant times, the Matagorda County Attorney. She is sued in both her individual and official capacities.
9. Defendant JUDGE JASON SANDERS is the elected Justice of the Peace for Precinct 1 and is sued in his individual and official capacities.
10. Defendant JUDGE MARK FINLAY is the elected Justice of the Peace for Precinct 4 and is sued in his individual and official capacities.
11. Defendant RAYMOND GONZALES is a deputy with the Matagorda County Sheriff's Office and is sued in both his individual and official capacities.
12. Defendant JOHN DOE DEPUTY is an unknown officer involved in Plaintiff's transport. He is sued in his individual and official capacities.
13. Defendant JANE DOE DEPUTY is an unknown officer who supervised on scene. She is sued in her individual and official capacities.
14. Defendant MICHAELA RILEY is a Records Clerk with the Matagorda County Sheriff's Office and is sued in her individual and official capacities.
15. Defendant JACKSON TOWING SERVICES is a private towing company operating in Matagorda County and may be served through its registered agent.

16. Defendant MATAGORDA COUNTY SHERIFF'S DEPARTMENT is an entity responsible for the supervision and conduct of deputies involved in this case.

17. Defendant MATAGORDA COUNTY ATTORNEY'S OFFICE is the legal department responsible for the oversight of legal conduct in the County and is implicated in acts of suppression and procedural violations.

III. FACTUAL ALLEGATIONS

18. On May 14, 2023, Plaintiff was operating a vehicle with expired registration in Markham, Texas, when he was stopped by a deputy of the Matagorda County Sheriff's Office.

19. Under Texas Transportation Code § 543.003, the offense of expired registration is a Class C misdemeanor that does not authorize custodial arrest. The statute requires that the officer issue a citation and release the individual upon a written promise to appear.

20. Despite this statutory restriction, Plaintiff was handcuffed, placed under custodial arrest, and transported to the Matagorda County Jail, where he was detained for approximately eighteen (18) hours without a warrant, probable cause, or judicial review.

21. On May 15, 2023, Judge Jason Sanders, Justice of the Peace for Precinct 1, conducted a magistration and unlawfully entered a disposition of "time served"

against Plaintiff without jurisdiction, without a plea, and without advising Plaintiff of his rights or legal options.

22. Plaintiff was not issued a citation, advised of his right to counsel, informed of the charges, or given an opportunity to rectify the administrative infraction as provided under Texas Transportation Code § 502.407(c).

23. On June 22, 2023, a vehicle tow hearing was held before Judge Mark Finlay, Justice of the Peace for Precinct 4. County Attorney Jennifer Chau appeared and participated on behalf of the County.

24. During the hearing, Plaintiff's spouse, Virginia L. Thompson, orally requested the production of body-worn and dash camera footage to show the vehicle's location and lawfulness of the tow. At that time, neither Plaintiff nor Mrs. Thompson was aware that the arrest itself had been unlawful under Texas Transportation Code § 543.003 due to concealment of this fact during Plaintiff's detention and magistration.

25. Judge Finlay denied the oral motion for production of the footage without justification, despite knowing the requested evidence would have revealed that both the arrest and the tow were statutorily improper and procedurally unsupported.

26. County Attorney Chau objected to lines of questioning that sought to expose the deputy's misconduct and permitted testimony from a Jackson Towing representative who lacked any firsthand knowledge of the towing circumstances or vehicle location.

27. Judge Finlay ultimately ruled that the tow was lawful, issued no appealable written order, and refused to address or correct the underlying unlawful arrest that triggered the tow, thereby ratifying the violations through an unjust hearing.
28. Michaela Riley, Records Clerk for the Matagorda County Sheriff's Office, denied Plaintiff's indigent request for access to body camera and dash camera footage. Despite the court recognizing Plaintiff's indigency, Ms. Riley refused to honor the fee waiver and created an administrative barrier to obtaining public records necessary to Plaintiff's defense.
29. Plaintiff made multiple attempts to obtain the requested footage before the scheduled hearing. In each instance, he was informed of vague "technical issues" that allegedly prevented access. These issues persisted through and beyond the hearing date, effectively denying Plaintiff access to potentially exculpatory evidence.
30. The cumulative effect of these actions resulted in:
- Deprivation of liberty without due process;
 - Malicious prosecution based on a non-criminal traffic infraction;
 - Unlawful seizure of private property;
 - Suppression of exculpatory evidence in violation of *Brady v. Maryland*, 373 U.S. 83 (1963);
 - Obstruction of justice and denial of a fair hearing.

31. At all times relevant to this Complaint, Defendants were acting under color of state law, as officials, agents, or employees of Matagorda County and its departments, and their actions were taken in their official and personal capacities.
32. The acts and omissions of the named Defendants violated Plaintiff's clearly established rights under the Fourth Amendment (freedom from unreasonable search and seizure), the Fifth and Fourteenth Amendments (due process and equal protection), and the Sixth Amendment (right to a fair and impartial legal proceeding).

IV. CAUSES OF ACTION

Count I – Unlawful Arrest and Detention

(Against Deputy Raymond Gonzales and Judge Jason Sanders in their individual capacities)

33. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
34. On May 14, 2023, Plaintiff was arrested by Defendant Deputy Raymond Gonzales for operating a vehicle with expired registration, a non-jailable offense under Texas Transportation Code § 543.003. The statute requires citation and release unless specific statutory exceptions apply, none of which were present.

35. Plaintiff was not intoxicated, did not refuse to sign a citation, and was not subject to any outstanding warrants. No circumstances existed to justify a custodial arrest.
36. Defendant Gonzales handcuffed Plaintiff, placed him under arrest, and transported him to the Matagorda County Jail, where he was detained for approximately eighteen (18) hours without judicial review.
37. On May 15, 2023, Defendant Judge Jason Sanders conducted an unlawful magistration and imposed a disposition of “time served” without any judicial proceeding, plea, or finding of guilt, thereby continuing Plaintiff’s unlawful detention without legal authority.
38. At the time of arrest, Defendant Gonzales knew or reasonably should have known that placing Plaintiff in custody for a non-jailable offense violated clearly established statutory and constitutional rights.
39. The arrest and detention were unreasonable, excessive, and conducted without probable cause, violating Plaintiff’s rights under the Fourth Amendment (unreasonable seizure) and Fourteenth Amendment (liberty without due process).
40. Plaintiff remained incarcerated for approximately eighteen (18) hours without a hearing or opportunity to challenge the detention, causing a substantial deprivation of liberty, dignity, and personal autonomy.
41. Defendant Judge Jason Sanders imposed a disposition of “time served” without any:
- Adjudication of guilt;
 - Entry of a plea;

- Hearing on the merits;
- Opportunity for Plaintiff to rectify the administrative offense under Texas law.

42. These actions perpetuated the unlawful detention and falsely conveyed the impression of a legitimate conviction, further violating Plaintiff's due process rights.

43. As a direct and proximate result, Plaintiff suffered:

- Loss of liberty;
- Emotional distress;
- Public embarrassment;
- Financial harm;
- Reputational damage;
- Ongoing legal injury due to the presence of a false court record.

Count II – Deprivation of Due Process and Brady Violations

(Against Jennifer Chau, Michaela Riley, Judge Mark Finlay, and Judge Jason Sanders in their individual capacities)

44. The Fourteenth Amendment guarantees all persons the right to due process of law, including the right to a fair hearing and access to exculpatory evidence in both criminal and quasi-criminal proceedings.

45. Defendant Jennifer Chau, then serving as Matagorda County Attorney, was notified of the scheduled tow hearing for June 22, 2023, and appeared on behalf of the County.
46. At that hearing, Ms. Chau knowingly withheld material body camera and dash camera footage that would have shown the legality of the arrest, vehicle location, and legitimacy of law enforcement actions.
47. This evidence was material and exculpatory under *Brady v. Maryland*, 373 U.S. 83 (1963), and its suppression violated Plaintiff's due process rights.
48. Plaintiff made multiple written and oral requests for the footage both before and during the hearing, including an oral motion at the start of the hearing. These requests were denied or ignored without justification.
49. Michaela Riley, Records Clerk, was informed of Plaintiff's indigency as recognized by the court. Despite this, she:
- Refused to waive the associated fees;
 - Directed Plaintiff to the County Attorney's Office, which offered no assistance;
 - Cited vague "technical issues" that prevented access to the footage but failed to notify the court of the obstruction.
50. The actions of Defendants Chau and Riley created deliberate and unlawful obstacles that deprived Plaintiff of a meaningful opportunity to contest the legality of his arrest and the subsequent towing of his vehicle. The concealed footage would likely have demonstrated that the arrest and towing were both unlawful.